Raghbir Kaur Wife Of Late Sh. Tarlok ... vs Hardip Singh Son Of Sh. Tarlok Singh Son ... on 12 August, 2009

CR No. 4062 of 2004 1

IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

C.R. No. 4062 of 2004
Date of Decision: 12.08.2009

1. Raghbir Kaur wife of Late Sh. Tarlok Singh, r/o village Athwal, Patti Bhullar, Tehsil Dera Baba Nanak, District Gurdaspur.

2. Smt. Kuldip Kaur d/o Tarlok Singh and widow of Harjinder Singh alias Sh. Chhotu, r/o Bhangwan, Tehsil and District Amritsar, now r/o village Kotli Surat Malbi, Tehsil Batala, District Gurdaspur.

... Revision-Petitioners

Versus

Hardip Singh son of Sh. Tarlok Singh son of Hazara Singh, r/o village Athwal, Patti Bhullar, Tehsil Dera Baba Nanak, District Gurdaspur.

...Respondent

CORAM: HON'BLE MR. JUSTICE SHAM SUNDER

Present: Mr. P.S. Goraya, Advocate,
for the revision-petitioners.

None for the respondent.

SHAM SUNDER, J.

**** This revision-petition, under Article 227 of the Constitution of India, is directed, against the order dated 15.11.03, rendered by the Court of Civil Judge (Junior Division), Batala, vide which, it

accepted the application under Order 39, Rules 1 and 2, read with Section 151 of the Code of Civil Procedure, for ad-interim injunction, filed by the plaintiff, and the order dated 06.08.04, rendered by the Court of Additional District Judge, Gurdaspur, vide which, it dismissed the appeal.

2. Hardip Singh, plaintiff/respondent, claimed that the suit property, was originally owned by Tarlok Singh son of Hazara Singh, who died, on 06.09.02. He bequeathed his property, in favour of the plaintiff, vide valid Will dated 16.04.01. It was stated that, after his death, the plaintiff, became the owner of the property, in dispute, on the basis of the Will, and came into possession thereof. The defendants, however, disputed the execution of the Will. The defendants tried to interfere into the peaceful possession of the plaintiff, over the property, in dispute. The defendants, were many a time asked, not to do so, but to no avail. On their final refusal, left with no other alternative, a suit for declaration and permanent injunction, was filed.

3. Alongwith the suit, an application under Order 39, Rules 1 and 2, read with Section 151 of the Code of Civil Procedure, seeking ad-interim injunction, was filed.

4. The defendants, put in appearance, and filed written statement, and also reply, wherein, it was admitted that Tarlok Singh, was the owner of the property, in dispute. It was also admitted that he died on 06.09.02. It was, however, denied that, he executed any legal and valid Will dated 16.04.01, in favour of the plaintiff. It was stated that the Will, was forged and fabricated. It was also denied that the plaintiff, was in possession of the property, in dispute. On the other hand, it was stated that the defendants, were co-sharer, in the property, in dispute. It was further stated that they had already alienated their share, in the property, in dispute, in favour of Sadha Singh. The remaining averments, were denied, being wrong.

5. After hearing the Counsel for the parties, and, on going through the record of the case, the trial Court, accepted the application under Order 39, Rules 1 and 2, read with Section 151 of the Code of Civil Procedure.

6. Feeling aggrieved, an appeal, was filed, which was dismissed, by the Court of Additional District Judge, Gurdaspur, vide order dated 06.08.04.

7. Feeling dissatisfied, the instant revision-petition, has been filed by the revision-petitioners.

8. I have heard the Counsel for the revision-petitioner, and have gone through the record of the case, carefully.

9. The Counsel for the revision-petitioner, submitted that the property, in dispute, being ancestral co-parcenary property, Tarlok Singh, was not competent to execute and get registered any Will, in respect thereof. He further submitted that the defendants, were having share, in the property, in dispute. He further submitted that the Courts below, were wrong, in granting interim injunction, in favour of the plaintiff.

10. After giving my thoughtful consideration, to the contentions, raised by the Counsel for the revision-petitioner, in my considered opinion, the revision-petition, deserves to be dismissed, for the reasons to be recorded, hereinafter. The defendants, in the written statement, admitted that, they had already alienated their share, in the property, in dispute, in favour of one Sadha Singh, vide sale deed dated 31.10.03. After the sale of their share, they did not remain co-sharers, in the property, in dispute. No plea, was taken, in the written statement, by the defendants, as is evident, from the orders of the Courts below, that the property, in dispute, was the ancestral co-parcenary property, and, as such, Tarlok Singh, was not competent to execute the Will, in respect thereof. Once, as per their own admission, the defendants, had already alienated their own share, in the property, in dispute, they were left with no right or interest therein. The submission of the Counsel for the revision-petitioner, to the effect, that it was ancestral co-parcenary property, without any plea having been taken, in that regard, in the written statement, cannot be accepted, at this stage. The orders of the Courts below, do not suffer from any illegality, material irregularity, or perversity, warranting interference of this Court, in its revisional jurisdiction, under Article 227 of the Constitution of India. The orders of the Courts below, are, liable to be upheld.

11. For the reasons, recorded above, the revision-petition, being without merit, must fail, and the same is dismissed.

12.08.2009 (SHAM SUNDER)
Amodh JUDGE